

In the case at bench, a similarly contradictory situation would result in in light of the court having found FUSD is entitled to immunity under section 44808. Defendant Gruber's negligence in placing the phone calls is either outside the course and scope of her employment, which is not pleaded, or Gruber's actions are within the course and scope of her employment as pleaded and she is immune from liability under Education Code section 44808. With respect to whether defendant Gruber was acting in the course and scope of her employment the "fact" supported is limited to plaintiff having alleged that Gruber was acting in the course and scope of her employment at the time she placed the phone calls and reference to the operative complaint as evidence. The court finds this is sufficient to meet defendant's burden in moving for summary judgment.

Accordingly, defendant Gruber's motion for summary judgment is granted.

## Tentative Ruling

16

(35)

### Tentative Ruling

Re: **DeRaffaele v. Crane et al.**  
Superior Court Case No. 22CECG02759

Hearing Date: August 5, 2026 (Dept. 501)

Motion: By Plaintiff for Entry of Default Judgment

### Tentative Ruling:

To deny without prejudice.

**If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

**Explanation:**

A party seeking a default judgment on declarations must use a mandatory Form CIV-100, and must additionally file: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a declaration of nonmilitary status as to each defendant against whom the judgment is sought; (6) a proposed form of judgment; (7) a dismissal of all parties against whom the judgment is not sought; (8) exhibits as necessary; and (9) a request for attorney fees if applicable. (Cal. Rules of Ct., rule 3.1800(a).)

Here, while a CIV-100 was filed, none of the various attempts indicate the seeking of a court judgment. Further, plaintiff Michael DeRaffaele ("Plaintiff") fails to submit a summary of the case or admissible evidence in support. The lack of evidence is problematic. A "default judgment ... can be entered only upon proof to the court of the damage sustained." (*Taliaferro v. Hoogs* (1963) 219 Cal.App.2d 559, 560; see also Code Civ. Proc., § 585, subd. (b) ["The court shall ... render judgment in the plaintiff's favor ... not exceeding the amount stated in the complaint ... as appears by the evidence to be just."])

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

## Tentative Ruling

Issued By: KCK on 08/04/26  
(Judge's initials) (Date)